

THE COURT OF SENIOR CIVIL JUDGE & ADDL. M.A.C.T.
SIRSI

Present: Smt. Sunitha,
B.Com., LL.M.PGDFsc
Senior Civil Judge & Addl. M.A.C.T.Sirsi

M.V.C. Nos. 465 / 2017 & 466 / 2017

Dated: 27th day of August 2018

M.V.C.No.465/2017

Petitioners:

1. Tanmay Karunakar Naik,
Age: 17 years,
R/o. Devakar, Tq: Sirsi (N.K.)
(Son of the Deceased)
2. Manikant Karunakar Naik,
Age: 12 years, Occ: Student,
R/o. Devakar, Tq: Sirsi (N.K.)
(Son of the Deceased)
Since petitioner No.1 and 2 are minor,
Represented by next friend Grandmother
Petitioner No.3.
3. Bhavani Ganapati Naik,
Age: 70 years, Occ: Household,
R/o. Devakar, Tq: Sirsi (N.K.)
(Mother of the Deceased)

M.V.C.No.466/2017

Petitioner:

1. Tanmay Karunakar Naik,
Age: 17 years,
R/o. Devakar, Tq: Sirsi (N.K.)
(Son of the Deceased)
2. Manikant Karunakar Naik,
Age: 12 years, Occ: Student,
R/o. Devakar, Tq: Sirsi (N.K.)
(Son of the Deceased)
Since petitioner No.1 and 2 are minor,
Represented by next friend Grandmother
Petitioner No.3.

3. Bhavani Ganapati Naik,
Age: 70 years, Occ: Household,
R/o. Devakar, Tq: Sirsi (N.K.)
(Mother of the Deceased)

(By: Sri. R.K.Naik, Adv.)

V/s

(In MVC Nos. 465 / 2017 & 466 / 2017)

Respondents:

The Managing Director,
NWKRTC, Hubli,
Represented by Divisional Controller,
NWKRTC, Sirsi Division, Sirsi.
Bus No. KA-42-F-393

(By: Sri. S.M.D. Adv.)

Date of institution of all petitions	09-10-2017
Nature of the petitions	For compensation
Date on which the judgment was pronounced	27-08-2018
Duration of the petitions	Year/s Month/s Day/s -00- -10- -18- (Smt. Sunitha) Senior Civil Judge and Member, Addl.MACT, Sirsi

COMMON JUDGMENT

This two petitions filed by petitioners MVC 465/2017 and MVC 466/2017 Under Sec. 166 of MV Act for seeking compensation of Rs.40,00,000/- and Rs.30,00,000/- respectively for the death of the parents of the 1st and 2nd petitioner and son and daughter-in-law of the 3rd petitioner from the respondent. Since both these cases are arising out

of a common accident, they are clubbed together and are taken up for final disposal under a common judgment.

2. The brief facts of the petitioners' case are summarized as under:

It is the case of the petitioners in both **MVC No. 465/2017 and 466/ 2017** that on 03-08-2017 at about 07-20 a.m. parents of petitioner No.1 and 2 Karunakar Ganapati Naik were proceeding in the motor cycle No. KA-31-E-8215 belonging to their father from Sirsi to Heggarane side from their house Devakar. When they reached near Haligadde Bus stand, Nilkund, one KSRTC Bus bearing Reg. No. KA-42-F-393 came from opposite direction from Heggarane to Sirsi side in a great speed and rash and negligent manner and dashed to their Motor Cycle. Due to this accident they fell down on the road and their father Karunakar Naik sustained grievous injuries to his head and became unconscious.

3. Immediately he was shifted to P.G. Hosptial, Sirsi and from there when he was about to taken to KIMS Hubli for further treatment he died during transit. Therefore in the said hospital post mortem was conducted. Thereafter the dead body was handed over to the relatives of petitioners and then the dead body shifted to native place and conducted funeral ceremony and thereby spent Rs.75,000-00 towards transportation of body and performing death ceremonies.

4. Whereas their mother Prema Karunakar Naik died at the spot. Then the dead body has been shifted to Government Hospital, Siddapur for Post Mortem. Thereafter the dead body was handed over to

the relatives of petitioners and they shifted the same to their native place and conducted funeral ceremony and thereby spent Rs.75,000-00 towards transportation of body and performing death ceremonies etc.

5. It is stated at the time of accident, father of petitioner No.1 and 2 was hale and healthy and working as Carpenter. He had earning monthly income at Rs.15,000/- p.m. And their mother was also hale and healthy and working as a Asha Karyakarthe and doing tailoring work and thereby she used to earn more than 10,000/- p.m. And their parents having high ambitions about petitioner No.1 and 2's education and future. And they were only the breadwinner of petitioner's family. Due to the death of their parents, these petitioners had lost their only earning member of the family as they are depending on the income of their parents alone and that they lost their parents and lost love and affection. And due to death of parents of petitioners No. 1 and 2 and grand mother suffering from mental shock and agony.

6. It is further alleged that the accident occurred solely due to the rash and negligent driving of Bus bearing Reg. No. KA-42-F-393. And as such respondent who is the owner and insurer of the said vehicle, liable to pay compensation of Rs.40,00,000/- and 30,00,000/- with the interest from the accident till realization. Hence they filed these two petitions.

7. The respondent appeared through his counsel and filed written statement and resisted the above claim. Wherein contended there was no fault on the part of the driver of Bus bearing No. KA-42-F-393, who was driving the bus on proper side, by observing all the traffic rules

and regulations. On the other hand the Motor Bike rider was coming from opposite direction along with a pillion rider with rash and negligent manner by ignoring the traffic rules and regulations. And that pillion rider was sitting behind the deceased rider and holding an umbrella to avoid the rain. Therefore bike rider was feeling uncomfortable and facing disturbance to ride the bike. And the driver of the bus having observed all these he taken his bus completely in mud road, inspite if that bike rider could not control his bike and dashed to the bus. Due to this impact the rider and pillion rider fell down on the road and died. It is contended this accident is occurred due to sole negligent of the rider of motorbike rider.

8. Therefore driver of the bus had informed to police and intend to lodge the complaint but the police have not taken his complaint and therefore he had sent the complaint to SP Karwar and DYSP Sirsi and also filed a private complaint before Hon'ble JMFC Court Siddapur in PC number is 45/2017 on 04-08-2017.

9. It is further stated the respondent without admitting the liability paid Rs.30,000/- on humanitarian basis to the deceased family and therefore if the court come to the conclusion this respondent is liable for accident, amount paid may be deducted under compensation.

10. It is further contended that since this accident had taken place due to the negligent on the part of the rider of the motor cycle without having valid D.L. the owner and insurer of the Motor bike are also necessary party to this petition. So, this petition is bad for non-joinder of necessary party. The respondent has further denied the age,

income of the injured and his expenditure. Accordingly on all these grounds prays for dismissal of the petition.

11. On the basis of the pleadings of the petitioners the following issues arise for consideration:

ISSUES

In MVC No. 465/2017

- 1. Whether the petitioner No.1 and 2 prove that, on 03-08-2017 at about 07.20 a.m. when their father Karunakar Ganapati Naik was proceeding in his Motor Cycle bearing No.KA-31-E-8215 along with his wife Prema Naik as pillion rider near Haligadde Bus stand, Nilkund, he met with an accident due to the rash and negligent driving of Bus bearing No.KA-42-F-393 by its driver and succumbed to the injury at the hospital?**
- 2. Whether the respondent made out any grounds to discharge form the liability?**
- 3. Whether the petitioners are entitled for the compensation as claimed by them, if so what is the quantum and from whom?**
- 4. What order or award?**

In MVC No. 466/2017

- 1. Whether the petitioner No.1 and 2 prove that, on 03-08-2017 at about 07.20 a.m. when their Mother Prema Karunakar Naik was proceeding in his Motor Cycle bearing No.KA-31-E-8215 along with her husband near**

Haligadde Bus stand, Nilkund, she met with an accident due to the rash and negligent driving of Bus bearing No.KA-42-F-393 by its driver and died at the spot?

2. Whether the respondent made out any grounds to discharge form the liability?

3. Whether the petitioners are entitled for the compensation as claimed by them, if so what is the quantum and from whom?

4. What order or award?

12. To substantiate the case of the petitioners, the petitioner No.3 deposed before the court as P.W.1 and another witness examined as PW-2 and got marked ten documents as Ex.P-1 to 10. Per contra the driver of the offending bus is examined as R.W.-1 on behalf of the respondent and produced six documents marked from Ex.R-1 to 6 and closed their side.

13. Heard arguments. On hearing and on perusal of the relevant materials on record, my findings on the above issues are as under:

In MVC No. 465/2017 and 466/2017

Issues No.1: In the affirmative

Issues No.2: In the Negative

Issues No.3: In the partly affirmative

Issues No.4: As per final order, for the following:-

REASONS

14. **Issue No.1:-** It is the specific allegation of the petitioners that the accident in question was occurred solely due to the rash and negligent driving of the offending vehicle by its driver. To prove this allegation petitioner No.3 is examined as PW-1 and relied on the police records which are marked from Ex.P-1 to P-5. i.e. FIR, complaint, Spot Panchananma, Charge Sheet and P.M. report. I perused these documents carefully. It is revealed that the accident in question was occurred solely due to the rash and negligent driving of the offending KSRTC Bus by its driver. But the respondent who is the owner of offending Bus denied the negligent Act on the part of the driver of the Bus on the other hand contended that at the time of accident it was raining and to avoid getting wet from rain the mother of petitioner No. 1 and 2 was holding umbrella which obstructed the rider of motor cycle to ride his vehicle as a result they themselves came in rash and negligent manner and dashed against the bus. But the respondent having contended so he has not produced seizer mahazar or P.F. consisting seizer of umbrella at the spot. And also the Ex.P-4 to 6 doesn't discloses the existing of umbrella on the other hand on careful perusal of Ex.P-2 complaint it appears one pedestrian has witness the accident and he stated the driver of the bus, though ahead there was slop and curve, ignoring the same without reducing speed of the bus in negligent manner went and hit against motor cycle coming from opposite direction and as a result the rider and pillion rider of the said motor cycle died. And though the respondent examined before the court

as RW-1 and reiterated the contention stated in the written statement, he admitted the things belonging to deceased are lying on the spot except the umbrella. If really the defence taken by the respondent was true they should have been umbrella lying on the spot. In the absence of the same the defence taken by the respondent cannot be believed. And at this juncture the learned counsel for petitioners placed a decisions reported in **2014 ACJ 2161 in between Yerramma and others Vs. G. Krishnamurthy and another**, where it is observed it is always the duty of the bus driver should take care and caution while driving its heavy passenger vehicle. In the present case also it is KSRTC bus and proceeding from Heggarane to Sirsi by carrying passenger and it was said to be raining, therefore he would have taken more caution while driving, as such the driver of the bus alone can be held responsible for the accident. And also he produced another decision reported in **2015 ACJ 1492 in between Prabandhak U.P. Rajya Sadak Parivahan Nigam Vs. Rabiha Begum and others** where it is held that **Evidence-Contributory negligence-Onus-Burden to prove contributory negligence lies on the party who pleads it. Contributory negligence should be proved like other issues. Whether inference of contributory negligence may be drawn solely from scene mahazar or on pleadings. when contributory negligence is alleged it has to be proved not mere seen of Mahazar or pleading but like other issues.** In the present case also having alleged negligence on the part of the rider of the motor cycle failed to prove the same except to pleading. As such both decision cited above are aptly applicable to the case on hand.

15. Further more admittedly it is the driver of the offending Bus who has been charge-sheeted in this case and there is no abated charge sheet as against the rider of the motor cycle. If really the deceased had also contributed towards the cause of the accident then certainly abated charge-sheet would have been filed by the police. And till this date this charge sheet has not been challenged either by the driver of the offending Bus or by the respondent on the other hand they themselves stated in written statement they have paid interim compensation amount 15,000/-. If there is no negligence on the part of the bus in causing the accident they would not have proceeded to pay any amount. And further regarding payment of said 15,000/- it is not elicited from the mouth of PW-1 and also no document is produced to that effect. Therefore the contention of the respondent that they have paid Rs.15,000/- as interim compensation to the petitioners cannot be believed. Hence, the plea of negligence sought to be set up by the respondent cannot be sustained. Therefore in the absence of any cogent rebuttal materials in this regard the only inference which has to be drawn is that the accident in question was the outcome of the rash and negligent driving of the offending Bus by its driver and hence the first issue will have to be answered in favour of the petitioners **in the affirmative.**

16. Issue No. 2 : The contention of the respondent that accident had taken place due to holding of umbrella to avoid rain which caused obstruction to the rider of the motor cycle in riding his vehicle as a result it caused accident, is concerned it is already discussed in Issue No.1 and held it is the driver of the bus one negligent in driving the

same. And it is not the case of the RW-1 that the PSI of Siddapur Police have not received the complaint it is only stated he has filed complaint before the Siddapur police and Superdident of Police. Further though he has filed private complaint before the JMFC court Siddapur it appears to be filed against Karunakar Ganapati Naik who is now dead and no case is filed against concerned police for having filed false charge sheet if any. As such no ground is made out by respondent to discharge him from the liability. Therefore the respondent being the owner he is to be held liable and liability will have to be fastened on him to indemnify the owner. Hence this issue is answered against the respondent **in the negative.**

17. Issue No.3: The petitioners in **MVC 465/2017** case have claimed a total compensation of Rs.40 lakhs for the accidental death of the deceased father. Their entitlement to claim the compensation has been assessed and determined under the following heads:

(i) Towards loss of dependency :- It is not in dispute that the petitioner No.1 and 2 are the children of deceased father and it is stated deceased was contributing his income and they were totally depending on the income of the deceased. The said fact is not seriously disputed by respondent. Therefore it could be held that petitioner No. 1 and 2 being the minor children and petitioner No.3 being the mother of deceased were depending on the earnings of the deceased.

As regards the earnings of the deceased according to the petitioners before the accident the deceased was working as carpenter and earning more than Rs.15,000/- p.m. To substantiate that he was working as carpenter the PDO Siddapur Gram Panchayat has issued a

certificate where he has stated the deceased was carpenter by profession and for availing benefit from the government he had sought for this certificate and accordingly as per his request PDO issued the said certificate. And PDO has also come and sworn before the court and stated from last eight years he is working as PDO in Nilkund Gramapanchayath, and this deceased Karunakar Ganapati Naik was residing within their panchayat jurisdiction and he died in the road traffic accident. And he further deposed he also issued Ex.P-6 which bears his signature and he says said deceased Karunakar Ganapati Naik was doing carpentry work. And during the cross examination though he admitted that if a person wants to apply for benefit available for government he need to issue some document relating to his work. But it is to be seen PDO clearly stated in the chief examination deceased was doing minor carpentry work and therefore cannot expect any document relating to his carpentry work. But learned counsel for respondent contended PDO has no authority to issue such kind of certificate but it is worth to mention that the certificate issued to avail facility given under government scheme. When that certificate is issued by PDO who is the responsible government official it is to be presumed that deceased was doing a carpentry work. And learned counsel for petitioner placed a decision reported in **2015 ACJ 598 between Neeta and other V/s Divisional Manager, Maharastra State Road Transport corporation** and submitted supreme court by considering that carpenter worker are skilled labourer held his monthly income has to be considered at Rs12,000. But I have gone through said decision carefully where Honourable supreme court apart from considering the deceased was

doing carpenter work it also observed deceased was having agricultural land and doing agricultural work too and therefore assessed his income at Rs 12,000 and therefore said principle cannot be made applicable to this case . Hence with great respect to the said decision same is inapplicable to the case on hand. However since there is no document to the effect that he was earning Rs.15,000/- p.m. and in the absence of any other cogent materials to ascertain his exact income since deceased was aged about 42 years, I deem it just and proper to consider his notional income at Rs.9,000/- p.m. which would be Rs.1,08,000/- for a year.

As regards the deductions since the deceased was married as on the date of the accident as per the decision reported in **2010(2) MACR 927 (sc) in between Sarala Verma V/s Delhi Corporation** 1/3rd of the annual income shall be deducted towards his personal and living expenses and the remaining amount would come at Rs.72,000 /- shall be considered as his annual contribution towards his family.

As regard the addition to the income as per the principles laid down in **National Insurance Co. vs. Pranay sethi's** case there shall be addition only if the deceased had permanent avocation or he had fixed salary. But petitioners in this case no where pleaded and proved that deceased had permanent avocation or he had fixed salary. Therefore it cannot be considered as permanent avocation. So no addition income could be made to his annual income.

As regards the application of multiplier, as per the PM report Ex.P-5 the deceased was shown to be aged 42 years as on the date of the accident. Thus as per the principles laid down in **Sarala Verma's** case,

the appropriate operative multiplier would be 14 for the persons aged above 41 to 45 years. By applying this multiplier to the above annual income, the total loss of dependency would come to Rs.10,08,000/- which shall be awarded under this head.

So for as other heads are concerned it is relevant to note in a recent decision passed by constitutional bench fixed the quantum to the extent of **funeral expenses Rs.15,000/- Loss of Estate Rs.15,000/-**. **Therefore in view of the recent decision reported in National Insurance Co. V/s Pranaya Sethi**, I proceed to grant award under other heads as under.

(ii) Towards love & affection :-

The petitioner No. 1 and 2 being the minor children and petitioner No.3 being the mother of deceased certainly lost, the love and affection of the son due to his untimely death for the remaining of their lives. Therefore I deem it just and proper to award for a reasonable sum of **Rs.30,000/-** each under this head.

(iii) Towards funeral expenses.

In the absence of any supporting materials to prove the expenses incurred by the petitioners for funeral expenses, **Rs.15,000/-** shall be held to be a just and reasonable sum under this head.

(iv) Towards loss to estate

Due to the death of the son of petitioners there have been certainly lose to the estate of the deceased which he would have earned had he been alive. Therefore, I deem it just and proper to award a reasonable sum of **Rs.15,000/-** under this head.

Thus, the petitioners in this case shall be awarded compensation amount under the various heads as stated below:

1) Towards loss of dependency	Rs. 10,08,000-00
2) Towards love & affection	Rs. 90,000-00
3) Towards Funeral expenses	Rs. 15,000-00
4) Towards loss of estate	Rs. 15,000-00
<u>Total :-</u>	<u>Rs. 11,28,000-00</u>

18. Therefore I am of the opinion petitioner shall be awarded total compensation of **Rs.11,28,000/-** together with cost of the petition and interest at the rate of **6%** p.a. from the date of the petition till the realization of the amount. Hence this issue is answered in favour of the petitioner **partly in the affirmative**.

19. Issue No.3: The petitioners in **MVC 466/2017** case, have claimed a total compensation of Rs.30 lakhs for the accidental death of the deceased mother. Their entitlement to claim the compensation has been assessed and determined under the following heads:

(i) Towards loss of dependency :- It is not in dispute that the petitioner No.1 and 2 are the children of deceased mother. And it is stated deceased was contributing her income and they were totally depending on the income of the deceased. The said fact is not seriously disputed by respondent. Therefore it could be held that petitioner No. 1 and 2 being the minor children were depending on the earnings of the deceased mother also. So for as petitioner No.3 is concerned she is the mother-in-law of deceased. Since her son was alive it cannot be

believed that even she was depending on the income of deceased daughter-in-law. Therefore petitioner No.3 cannot be considered as dependant on the income of deceased daughter-in-law.

As regards the earnings of the deceased according to the petitioners before the accident the deceased was working as Asha Karyakarte and she was also doing Tailoring work and earning more than Rs.10,000/-. To show that she was Ashkarykarte she has produced Ex.P-8 and 9 for having undergone training. However he has not produced any document to show deceased mother was working as Ashkarykarthe. However in view of the fact that she had undergone training it can be presumed that she was working as Ashkaryakarth. But so far as working as tailoring, is concerned no document is produced. It is also not stated whether she is doing tailoring work independently or she is doing tailoring work under somebody. So also regarding her income she has not produced any document. Therefore by considering the age that she is only 35 years old her income is assessed at Rs. 7,000/- p.m. which would be Rs.84,000/- for a year.

As regards the deductions since the deceased was married as on the date of the accident as per the decision reported in **2010(2) MACR 927 (sc) in between Sarala Verma V/s Delhi Corporation** 1/3rd of the annual income shall be deducted towards her personal and living expenses and the remaining amount would come at Rs.56,000 /- shall be considered as her annual contribution towards her family.

As regard the addition to the income as per the principles laid down in **National Insurance Co. vs. Pranay sethi's** case there shall be addition only if the deceased had permanent avocation or she had fixed

salary. But petitioners in this case nowhere pleaded and proved that deceased had permanent avocation or she had fixed salary. Therefore it cannot be considered as permanent avocation. So no addition income could be made to her annual income.

As regards the application of multiplier, as per the PM report Ex.P-10 the deceased was shown to be aged 35 years as on the date of the accident. Thus as per the principles laid down in **sarala Verma's** case, the appropriate operative multiplier would be 16 for the persons aged above 31-35 years. By applying this multiplier to the above annual income, the total loss of dependency would come to Rs.8,96,000/- which shall be awarded under this head.

So far as other heads are concerned it is relevant to note in a recent decision passed by constitutional bench fixed the quantum to the extent of **funeral expenses Rs.15,000/- Loss of Estate Rs.15,000/-**. **Therefore in view of the recent decision reported in National Insurance Co. V/s Pranaya Sethi**, I proceed to grant award under other heads as under.

(ii) Towards love & affection :-

The petitioner No. 1 and 2 being the minor children certainly lost, the love and affection of the mother due to her untimely death for the remaining of her lives. Therefore I deem it just and proper to award for a reasonable sum of **Rs. 30,000/-** each under this head.

(iii) Towards funeral expenses.

In the absence of any supporting materials to prove the expenses incurred by the petitioners for funeral expenses, **Rs.15,000/-** shall be held to be a just and reasonable sum under this head.

(iv) Towards loss to estate

Due to the death of the mother of petitioners there have been certainly loss to the estate of the deceased which she would have earned had she been alive. Therefore, I deem it just and proper to award a reasonable sum of **Rs.15,000/-** under this head.

Thus, the petitioners in this case shall be awarded compensation amount under the various heads as stated below:

1) Towards loss of dependency	Rs.	8,96,000-00
2) Towards love & affection	Rs.	60,000-00
3) Towards Funeral expenses	Rs.	15,000-00
4) Towards loss of estate	Rs.	15,000-00
Total :-	Rs.	9,86,000 00

20. Thus, **petitioner No. 1 and 2** shall be awarded a total compensation of **Rs.9,86,000 /-** together with cost of the petition and interest at the rate of **6% p.a.** from the date of the petition till the realization of the amount.

21. As regards the liability, the driver of the Bus is to be held liable being the owner. Therefore liability will have to be fastened on the respondent to pay the compensation to the petitioner No. 1 and 2. Hence I answer this issue in favour of the petitioners No. 1 and 2 **partly in the affirmative.**

22. **Issue No.4:-** In the light of the findings given on the above points, I hereby proceed to pass the following:-

-: ORDER :-

The claim petitions filed by the petitioners under Section 166 of M.V.Act in MVC Nos. 465/2017 and 466/2017 are hereby partly allowed with cost.

The petitioners in MVC Nos., 465/2017 and petitioner No. 1 and 2 in MVC NO. 466/2017 are hereby held entitled to a total compensation of Rs.11,28,000/- and Rs.9,86,000/- respectively together with interest at the rate of 6% p.a. from the date of the petitions till the realization of the amount.

The respondent is held liable to compensate the petitioners and the respondent is directed to deposit the above compensation amount into the court within three month from the date of this award.

In respect of MVC No. 465/2017 is concerned out of the compensation amount awarded, the petitioner No. 1 and 2 shall be awarded Rs.4,14,000/-each. Out of which entire amount shall be invested as FD in the name of petitioner No.1 and 2 in any nationalized or schedule bank till attain the majority with a liberty to petitioner No.3 to withdraw the periodical interest.

In respect of MVC No. 466/2017 is concerned out of the compensation amount awarded, the petitioner No. 3 shall be awarded Rs.3,00,000/-. Out of which Rs. 1,00,000/- shall be invested as FD with a liberty to withdraw the periodical interest and the remaining

amount of Rs.2,00,000/- shall be released in her favour by way of account payee cheque on proper identification.

In respect of MVC No. 466/2017 is concerned out of the compensation amount awarded, the petitioner No.1 and 2 shall be awarded Rs.4,93,000/-each. Out of which entire amount shall be invested as FD in the name of petitioner No.1 and 2 in any nationalized or schedule bank till attain the majority with a liberty to petitioner No.3 to withdraw the periodical interest.

Advocate's fee shall be fixed at Rs.1,000/-.

Draw awards accordingly.

The copy of this judgment shall be kept in MVC No.465/2017 by keeping the original in M.V.C.No.466/2017.

(Dictated to the Stenographer, directly on computer revised, corrected by me and then pronounced in the open court on this **27th day of August 2018**)

(Smt. Sunitha)
Senior Civil Judge & Member
Addl. MACT Sirsi.

ANNEXURE

WITNESSES EXAMINED ON BEHALF OF PETITIONER/S :-

(In MVC Nos. 465 / 2017 and 466 / 2017)

P.W-1	:Bhavani Ganapati Naik	20-06-2018
P.W-2	:Bhavani Ganapati Naik (MVC No. 466/2017)	-do-
P.W-3	:Pradeep Jatti Ankola	05-07-2018

DOCUMENTS GOT MARKED ON BEHALF OF PETITIONER/S:-

Ex.P-1	:	True copy of FIR dated: 03-08-2017	20-06-2018
Ex.P-2	:	-do- complaint	-do-
Ex.P-3	:	-do- Spot Panchanama	-do-
Ex.P-4	:	-do- Charge Sheet	-do-
Ex.P-5	:	-do- P.M. Report	-do-
Ex.P-6	:	Certificate issued by Grama Panchayat Nilkunda	-do-
Ex.P-7	:	Attested copy of Ration Card	-do-
Ex.P-8 & 9	:	Attested copy of certificate issued by principal District Training Centre, Karwar	-do-
Ex.P-10	:	True copy of P. M. report of Prema K. Naik	-do-

WITNESSES EXAMINED ON BEHALF OF RESPONDENT/S:-

R.W-1	:	Babu Nandi Naik	25-07-2018
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DOCUMENTS GOT MARKED ON BEHALF OF RESPONDENT/S:-

Ex.R-1	:	Authorization letter of RW-1	25-07-2018
Ex.R-2	:	Certified copy of Private complaint No. 45/2017	-do-
Ex.R-3	:	Certified copy of Order Sheet in private Complaint No. 45/2017	-do-
Ex.R-4 & 5	:	Photos (2)	-do-
Ex.R-6	:	C.D.	-do-

**Senior Civil Judge & Member
Addl. MACT Sirsi.**

